

deficient, Plaintiff respectfully requests leave to amend....” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, the “Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghetesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

Thus, as this is the first time the Court has addressed the above causes of action as to this Defendant, the Court will grant leave to amend to the extent that complaint shows it is capable of amendment. “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.)

Here, as explained in detail above, Plaintiffs causes of action for (1) breach of covenant of quiet enjoyment, (2) wrongful eviction, and (3) negligent hiring, training, supervision, and retention, are only properly asserted against the landlord. The SAC makes clear that the entity Defendants are the landlord and the Mr. Figueroa is only an employee thereof. As such, it does not appear that the SAC is capable of amendment to properly assert those claims against Mr. Figueroa. As such, leave to amend is **denied** as to those causes of action.

As Plaintiffs’ opposition asserts that they agreed to dismiss the assault cause of action, the Court **denies** leave to amend as to that cause of action as well.

Conclusion

Defendant’s Demurrer is **sustained** in full as to each cause of action. Plaintiffs are **granted leave to amend** as to the following claims:

- Intentional infliction of emotional distress
- Negligence
- Retaliation
- Elder abuse

Leave to amend is **denied** as to the following claims:

- Assault
- Breach of covenant of quiet enjoyment
- Wrongful eviction
- Negligent hiring, training, supervision, and retention.

Plaintiffs shall file any amended complaint within 10 calendar days of notice of the entry of the order on this Demurrer.

11. 9:00 AM CASE NUMBER: C24-00428

CASE NAME: KEYNA BAKER VS. 4KS INVESTMENTS LLC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: 4KS INVESTMENTS LLC

TENTATIVE RULING:

Summary

Defendant 4KS Investments LLC Motion to Compel Individual Arbitration, Dismiss Class Claims, and Stay Proceedings, along with the Request for Judicial Notice is unopposed. As such, the motion is **granted**. The Court will execute the proposed order lodged on January 20, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on May 6, 2026.

12. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1

FILED BY:

TENTATIVE RULING:

The hearing on the Motion for Summary Judgment is continued to June 3, 2026 at 9:00 a.m. No appearance is required on May 6, 2026.

13. 9:00 AM CASE NUMBER: C24-01961

CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT**

FILED BY:

TENTATIVE RULING:

Summary:

Defendant Natalia Howard served a Motion to Disqualify the Hon. Benjamin T. Reyes II on May 4, 2026. The Motion was not filed until May 5, 2026, and there is no proof of service on file that demonstrates that Plaintiff was served as required by Court rules. Notwithstanding these procedural irregularities, and in an abundance of caution, the Court vacates this Motion pending a ruling on Defendant's Motion. No appearance is required at the hearing on May 6, 2026.

14. 9:00 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: CARDIGAN, INC.

***TENTATIVE RULING**

The Motion of Defendants Cardigan, Inc. and Hyundai Capital America to Compel Arbitration and Stay Action is **granted**. The parties shall submit to binding arbitration before JAMS, in accordance with the arbitration provision in the Lease and their agreement as reflected in counsel's October 17, 2025 correspondence.

The action is stayed pending completion of the arbitration, except that the Court sets an arbitration